

Welcome to smartXchange.es, an online service that allows you to connect with others to practice English, French, Spanish, Italian, or German (our “**Languages**”), find tutors, and download tutoring materials.

By using the smartXchange.es service, you accept and agree to these Terms of Service. If you do not accept these Terms of Service, you should not register with smartXchange.es or use this Service.

smartXchange.es reserves the right to modify these Terms of Service from time to time without notice. You are responsible for regularly reviewing these Terms of Service so that you will be apprised of any changes. The presence of the Member on smartXchange.es implies full acceptance of all revisions or amendments of these Terms of Service.

1. Registration

1.1 To register with smartXchange.es you must be at least 18 years of age and you must fill in all mandatory fields in the registration form with true and accurate information or register with an accurate and valid LinkedIn account. You are allowed to use a Nickname instead of your First Name if you prefer.

1.2 Each user may only register once.

2. Duration of membership

2.1 You should always use an email address that you check on a regular basis. If your email bounces your account can be put on hold or deleted.

smartXchange.es reserves the right to put on hold or delete your account immediately and without notice if, in its sole judgment, you:

2.2 breach these Terms of Service.

2.3 engage in behavior we feel is detrimental to other users on the platform.

2.4 provide misinformation on your profile.

3. Prices

3.1 It's free to register and use the basic services of smartXchange.es.

3.2 smartXchange.es will charge €4,99 per month or €49,99 per annum for using its premium services.

3.3 smartXchange.es will charge another agreed upon price for its Enterprise services and users in a Partnership agreement.

4. Restrictions on Use

4.1 The smartXchange.es service is for personal and non-commercial use only; it is not to be used for commercial ends. It cannot be used to contact members for other reasons than language learning or to promote your own language learning, language exchange, education technology, or social networking service.

4.2 You cannot be rude to other users, even if they have been rude to you.

4.3 You may not make comments or submit any form of content that is or might be illegal,

unauthorized, against good moral standards, or contrary to smartXchange.es's purpose and the laws and regulations in force. While smartXchange.es prohibits such content and material, you understand and agree that you nonetheless may be exposed to such content or material and that you use the smartXchange.es service at your own risk.

4.4 The public fields of your profile (like the "Profession/Title" field) cannot contain personal information, such as a phone number, email address, website address, etc.

4.5 While you are allowed to write personal information in the messages you send to other users, you understand that you do so at your own risk. smartXchange.es strongly recommends that you get to know your potential language learning partner before exchanging personal information or setting up a meeting.

4.6 smartXchange.es reserves the right to remove any content or account that smartXchange.es determines vulgar, contrary to the spirit of learning languages, infringe or violate any party's intellectual property, other proprietary rights or these Terms of Service, without notification, compensation or refund.

5. Moderation

5.1 You understand and accept that the Site may have some moderation features. For example, a member may be able to report a message they have received by another member if they believe our Terms of Service have been violated.

5.2 You understand and accept that the Site may have some self-moderating features. For example, if you are reported by too many users, your account could be put on hold or removed automatically.

6. Content, Accessibility and Liability

6.1 smartXchange.es does not warrant or represent that the information provided, in particular such provided by other users, is up-to-date, correct, complete or of quality. The materials in this website are provided "as is" and without warranties of any kind.

6.2 The original version of this Site is in English. The translation of any portion of this Site into another language is for your convenience only and cannot be relied upon. You accept that there can be errors in translations and that parts of the website may not be translated, including these Terms of Service.

6.3 smartXchange.es does not warrant that this Service will be uninterrupted or error-free. Furthermore, to be able to make full use of the services offered by smartXchange.es, the user might need to update his/her software or switch to a more widely used browser (Chrome, Safari, Firefox).

6.4 smartXchange.es reserves the right to moderate the content within the website and users' conduct but is under no obligation to do so.

6.5 You understand that you alone define the boundaries of your privacy and that it is your responsibility to ensure information that could lead to you being harmed is not transmitted through the website. If you give personal information or set up a physical meeting, you do so at your own risk. smartXchange.es strongly recommends you get to know your potential language partner via the website before meeting in person. If you do arrange to meet, choose a public place (café, pub, restaurant etc.).

6.6 smartXchange.es or third parties may supply hypertext links to other websites other than

the smartXchange.es site and to Internet sources. As smartXchange.es is unable to supervise these external sites and sources, it cannot be held responsible for the availability of these external sites and sources, and cannot be responsible for their content, advertising, products, services or any other element made available on or from any of these external sites or sources. 6.7 smartXchange.es will not be liable for any damages or injury caused by, including but not limited to, any failure of performance, error, omission, interruption, defect, delay in operation of transmission, data interception, computer virus, or line failure. smartXchange.es will not be liable for any damages, injury or death, including but not limited to, special or consequential damages that result from the use of, or the inability to use, this site.

7. Submissions, Publications and Intellectual property

7.1 You acknowledge that you are responsible for whatever material you submit, and you, not smartXchange.es, have full responsibility for the content, including its legality, reliability, appropriateness, originality, and copyright.

7.2 Any content you submit or publish to smartXchange.es becomes the property of smartXchange.es. This includes but is not limited to ideas, concepts, designs, language phrases, translations. Personal information besides that displayed on your profile will be kept strictly confidential.

7.3 Logos, graphics, photographs, animations, videos and texts featured on the smartXchange.es site and in the smartXchange.es service are the intellectual property of smartXchange.es or its partners and may not be reproduced, used or represented without the express permission of smartXchange.es or its partners, under threat of legal action.

8. Final Provisions

8.1 If any part of these Terms and Conditions is unlawful, void, or unenforceable, that part will be deemed severable and will not affect the validity and enforceability of any remaining provisions.

PERSONAL DATA TREATMENT

The company to be formed and named smartXchange, Inc., or any other company in the language learning and social networking space that is formed in the next twelve (12) months arising out of the work performed by the Cofounders (the “**Company**”), with main office in Madrid, Spain, in quality of owner of the website www.smartxchange.es and controller of data treatment, informs Subjects of data treatment on the purposes and methods of data treatment, the related communication and disclosure and the nature of data conferral.

TYPE OF DATA TREATED

Navigation data:

IT systems and software procedures regarding the functioning of the website above mentioned will acquire, during the exercise of their protocols, several personal data of which the transmission is implied in using internet communication protocols and that can identify users.

Data provided by the users:

Whether users voluntarily or expressly provides data within sections of the website, this data will be treated with the purpose of satisfying users’ requests concerning the services provided by the controller.

PURPOSES OF THE TREATMENT

Personal information collected from Subjects, including images provided by Subjects themselves, are part of data treatment and are treated for:

- i) granting the registration on and the correct supply of the services provided by the website www.smartxchange.es owned by the company and, therefore, fulfil the obligations arising from the contract relationship established with users and the obligations arising from the law and regulations in effect, in particular regarding fiscal and public security aspects;
- ii) in case of consensus of Subjects, personal data may be treated for commercial communication of the controller and for including Subjects to its newsletter.

CONTROLLER OF THE DATA TREATMENT AND PLACE OF TREATMENT

The Controller of the personal data treatment is the Company with registered office in Madrid, Spain. Subjects’ requests on personal data treatment regarding shall be sent to the Controller to the following email address: support@smartxchange.es.

The place of data treatment is to be considered the main office of the controller, Calle del Pinar 6, Madrid, Spain.

CONFERRAL OF DATA

Data conferral is optional and is forwarded to the will of Subject who wants to subscribe to the platform owned by the controller. Lack of conferral of data which are mandatory for the subscription will prevent the use of services provided by the controller. Data which are not indicated as mandatory can be voluntarily conferred by the Subject.

DATA TREATMENT PROCEDURE

Data treatment is executed through IT supports by internal subject, expressly appointed, within the company structure. Data are preserved in electronic archives with minimum safety measures as prescribed by the law.

DISCLOSING AND COMMUNICATION OF DATA

Collected data will not be disclosed. Communication to third parties, different from the controller, the processors, internal and external to the company structure, is allowed whether is necessary for the purposes above mentioned and only to third parties that guarantee the pursuing of the purposes. In any case third parties will treat data with compliance to the law and due to the principle of correctness.

PERSONAL DATA PRESERVATION

Subjects' personal data will be preserved for the time necessary to fulfil duties arising from the relationship between the parties and, in any case, for a period of time not longer than two years from the end of the relationship between parties.

In any case, for what concerns data treatment of commercial communication and for including Subjects in the newsletter, data will be preserved for the period of time provided by the law.

The Subject can oppose either for the first or the second treatment.

RIGHTS OF THE SUBJECT

Subject of data treatment can exercise its rights provided by the law, even if data are not yet registered. Therefore, the Subject has the right to obtain the indication of:

- a) **origin of personal data;**
- b) **purposes and modalities of treatment**
- c) **how the treatment is carried with electronic instruments**
- d) **identification of controller, processor and representative(s)**
- e) **subjects and categories of subjects that may acknowledge data or to who data can be communicated due to their quality of representative within a State**

Moreover, the Subject has the right to obtain:

- a) **the update, amendment or integration of data when it has interest in doing so**
- b) **cancellation, transformation in anonymous form or block of data treated in case of law breach, including data of which the conservation is not necessary concerning the purposes of data treatment**

- c) **declaration that the operations a) and b) above are communicated to who have been communicated of diffused with data, except in case that the fulfilment is impossible or manifestly excessive comparing to the Subject's right.**

Furthermore, the Subject has the right of opposing, in whole or in part:

- a) **for legitimate reasons to data treatment that regards the Subject itself, even if pertaining to the scope of collection**
- b) **to its personal data treatment that concerns sending of advertising material or direct sales or market researches or commercial communications.**

The company to be formed and named smartXchange, Inc., or any other company in the language learning and social networking space that is formed in the next twelve (12) months arising out of the work performed by the Cofounders (the “**Company**”), with main office in Madrid, Madrid, Spain, in quality of controller of data treatment informs users of the website www.smartxchange.es on the types of cookies used and related purposes, providing also indications for the selections/deselection of cookies.

WHAT ARE COOKIES AND WHAT IS THEIR PURPOSE

A “cookie” is a text file created by several websites on users’ computer at the moment of access to those sites, with the purposes of collection and transportation of information. Cookies are sent from a web server (the computer which executes the visited website) to the browser of the users (Internet Explorer, Mozilla Firefox, Google Chrome, etc...) and are stored on the computer of the latter. Then, the cookies will be sent back to the website at the moment of following visits by the same users.

Several operations may not be accomplished without the use of the cookies, that are technically necessary. In other situations the visited site uses cookies for facilitating the navigation of the users or allowing to those the use of services required.

Cookies can last on the system even for long periods and may contain a unique identification code that allows sites to track the navigation of the user within the sites themselves and to use cookies for statistical or advertising purposes, for creating a custom profile of the user having regard to the pages visited and show and/or send to him behavioural advertising.

WHAT TYPES OF COOKIES DOES SMARTXCHANGE.ES USE?

The type of cookies used on most websites can generally be put into one of six categories: Strictly Necessary, Performance, Functionality, Flash, Tailored Content and Targeting. In order to provide you with the best browsing experience, smartXchange.es uses all of these categories on the Site. You can find out more about each cookie category in the sections below.

STRICTLY NECESSARY COOKIES

These cookies are essential, as they enable you to move around the Site and use its features, such as accessing secure areas. Without these cookies, some services you have asked for such as payment submission can’t be provided.

PERFORMANCE COOKIES

These cookies collect information about how you use the Site, for example which pages you go to most often and if you get error messages from certain pages. These cookies don't gather information that identifies you. All information these cookies collect is anonymous and is only used to improve how the Site works.

FUNCTIONALITY COOKIES

These cookies allow the Site to remember choices you make (such as your user name, language or the region you're in). For instance, the Site uses functionality cookies to remember your language preference. These cookies can also be used to remember changes you've made to text size, font and other parts of pages that you can customize. They may also be used to provide services you've asked for such as watching a video or commenting on a blog. The information these cookies collect may be anonymous and they cannot track your browsing activity on other websites.

THIRD PARTY COOKIES

The website www.smartxchange.es may contain third party cookies, namely cookies generated from a different website from the one that the user is visiting.

Third party cookies are considered to be of the anonymous type allowing the collection and the registration of information, anonymously, on the pages consulted on each site, but do not allow to identify the visitor and are not combined with other information. The data obtained will be used only for tracking activities and examining the use of the site from users, fill statistics with anonymous information and aggregated data.

SOCIAL BUTTONS

The site of smartXchange.es incorporate social buttons/widgets that represent social network and other websites icons. The mentioned buttons allow the user to interact directly with social networks and other websites represented with a single click. If users interact with them, the social networks and other websites are going to collect information related to user's visit. However the Controller will not share with social networks and other website any information regarding the navigation or user's information acquired from its website.

MODALITIES OF DATA TREATMENT

Data treatment is executed through IT supports by internal subject, expressly appointed, within the company structure. Data are preserved in electronic archives with minimum safety measures as prescribed by the law.

DISCLOSE AND COMMUNICATION OF DATA

Collected data will not be disclosed. Communication to third parties, different from the controller, the processors, internal and external to the company structure, is allowed whether is

necessary for the purposes above mentioned and only to third parties that guarantee the pursuing of the purposes. In any case third parties will treat data with compliance to the law and due to the principle of correctness.

RIGHTS OF THE SUBJECT

Subject of data treatment can exercise its rights provided by the law, even if data are not yet registered. Therefore, the Subject has the right to obtain the indication of:

- f) origin of personal data;**
- g) purposes and modalities of treatment**
- h) how the treatment is carried with electronic instruments**
- i) identification of controller, processor and representative(s)**
- j) subjects and categories of subjects that may acknowledge data or to who data can be communicated due to their quality of representative within a State**

Moreover, the Subject has the right to obtain:

- d) the update, amendment or integration of data when it has interest in doing so**
- e) cancellation, transformation in anonymous form or block of data treated in case of law breach, including data of which the conservation is not necessary concerning the purposes of data treatment**
- f) declaration that the operations a) and b) above are communicated to who have been communicated or diffused with data, except in case that the fulfilment is impossible or manifestly excessive comparing to the Subject's right.**

Furthermore, the Subject has the right of opposing, in whole or in part:

- c) for legitimate reasons to data treatment that regards the Subject itself, even if pertaining to the scope of collection**
- d) to its personal data treatment that concerns sending of advertising material or direct sales or market researches or commercial communications.**

CONTROLLER AND PROCESSOR

The Controller is the Company, with main office in Madrid, Spain. A list of processors is available at main office of Controller.

CONSERVATION PERIOD

Data are preserved until the Subject does not exercise the right of opposition to the treatment.

DESELECTION AND ACTIVATION OF COOKIES

Accessing to the site the user expressly agreed to the use of cookies above mentioned. The selection/deselection of each cookie can be done by your personal browser (select settings menu, internet options, open the board related to privacy and choose the desired block level of cookies).